

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
MARK CARTY,

Plaintiff,

Index No:

- against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, RYAN PRUDEN,
ANTHONY PORCELLI, JOHNATHAN MIRANDA,
JERRY SUKHNANDAN, and JOHN DOES 1-10,

Defendants.
----- X

Plaintiff, MARK CARTY by his attorneys, LIAKAS LAW, P.C., as and for this Verified
Complaint, alleges as follows:

PRELIMINARY STATEMENT

1. This is a common law tort and civil rights action in which plaintiff seeks relief for violation of his rights privileges and immunities guaranteed by the United States Constitution including the Fourth and Fourteenth Amendments, and federal law pursuant to 42 U.S.C. §1983, as well as pursuant to New York State and New York City laws which permit redress for same.

2. Beginning on or about May 27, 2023, New York City Police Department [hereinafter as “NYPD”] Police Officers RYAN PRUDEN, ANTHONY PORCELLI, and JOHNATHAN MIRANDA acted in concert and/or otherwise jointly to unlawfully search and seize Plaintiff and falsely arrest, assault, batter, and use excessive force against him and or otherwise failed to intervene to prevent same.

3. Beginning on or about May 27, 2023, NYPD Police Officers RYAN PRUDEN, ANTHONY PORCELLI, JOHNATHAN MIRANDA, JERRY SUKHNANDAN, and JOHN DOES 1-10, [hereinafter collectively referred to as the “Individual Defendants”], acted in concert

and/or otherwise jointly to falsely arrest, maliciously prosecute, and to fabricate evidence against Plaintiff as well as to deny him adequate medical treatment and care for his injuries and/or to fail to intervene to prevent these unlawful acts and omissions.

4. Beginning on or about May 27, 2023, Defendants retaliated against Plaintiff for the lawful exercise of his First Amendment rights and/or condoned or otherwise failed to intervene to prevent same.

5. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

JURISDICTION AND VENUE

6. Within 90 days of the incidents alleged in this complaint, Plaintiff served upon Defendant, THE CITY OF NEW YORK, a Notice of Claim setting forth the name and post office address of Plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed.

7. More than 30 days have elapsed since Plaintiff's Notice of Claim was served on Defendant.

8. A hearing pursuant to §50(h) of the General Municipal Law was held.

9. That all conditions precedent to the bringing of this action have been complied with.

10. Venue is proper in the Supreme Court of the State of New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and THE CITY OF NEW YORK is subject to personal jurisdiction in the Supreme Court of the State of New York, Kings County.

PARTIES

11. Plaintiff, MARK CARTY (hereinafter “Plaintiff”), is a resident of the State of New York.

12. Plaintiff is a Black male who speaks English with a Jamaican accent.

13. THE CITY OF NEW YORK (or “the CITY”) is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant CITY, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel.

14. At all times here relevant, Defendant CITY was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

15. Defendant RYAN PRUDEN was at all relevant times, a police officer employed by the CITY OF NEW YORK through its NYPD.

16. Defendant ANTHONY PORCELLI was at all relevant times, a police officer employed by the CITY OF NEW YORK through its NYPD.

17. Defendant JOHNATHAN MIRANDA was at all relevant times, a police officer holding the rank of Sergeant, employed by the CITY OF NEW YORK through its NYPD.

18. Defendant JERRY SUKHNANDAN was at all relevant times, a police officer holding the rank of Lieutenant, employed by the CITY OF NEW YORK through its NYPD.

19. Defendant JOHN DOES 1-10 were at all relevant times, law enforcement officers and/or NYPD officials, employed by the CITY OF NEW YORK through its NYPD, who instructed the involved officers to issues summonses and/or who instigated a summons quota, who

covered up the use of excessive force and/or false arrest of Plaintiff, and who otherwise aided or abetted the Defendants in doing so and whose real names are not known.

20. At all times mentioned herein, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

21. Defendant THE CITY OF NEW YORK is responsible for the tortious acts and omissions of its agents, servants, and employees, including, but not limited to the Individual Defendants pursuant to the doctrine of *respondeat superior*.

FACTUAL ALLEGATIONS

22. On May 27, 2023, Plaintiff was lawfully upon the sidewalk abutting Church Avenue near 49-04 Church Avenue, Kings County, New York when Defendants RYAN PRUDEN and ANTHONY PORCELLI exited their police vehicle.

23. Upon information and belief, Defendants RYAN PRUDEN and ANTHONY PORCELLI were looking for summonses to write before the end of the month to reach the unlawful NYPD summons quota they had been issued.

24. Upon exiting, Defendants RYAN PRUDEN and ANTHONY PORCELLI indicated they were attempting to arrest or investigate a woman they claimed was urinating between two cars.

25. The woman had already left the area when the officers arrived at the sidewalk.

26. Plaintiff and others at the scene began to verbally protest that Defendants PRUDEN and PORCELLI were acting aggressively and in a manner that was unnecessary for such a minor offense and was excessive under the circumstances.

27. Plaintiff's complaints were a lawful exercise of his rights under the First Amendment of the United States Constitution and Article I Section 8 of the New York State Constitution.

28. Plaintiff specifically complained that PRUDEN, as a Black man, should not be participating in the over-policing of a community which is mostly Black.

29. Plaintiff was unaware that Defendants PRUDEN and PORCELLI had both a personal and professional interest in engaging in such behavior in part because upon information and belief, they had been instructed to write summonses and/or otherwise get "activity" by the end of the month.

30. Upon hearing Plaintiff's lawful complaints and critiques, Defendant PRUDEN became visibly enraged and repeatedly called Plaintiff a "bum."

31. Defendant PORCELLI observed this and did nothing to intervene.

32. Upon realizing that Defendant PRUDEN was enraged, armed, and behaving in a manner that was extremely unprofessional, Plaintiff decided to leave the scene.

33. Plaintiff was not under arrest and was not detained at this time.

34. At no point did the officers have reasonable suspicion or probable cause to believe that Plaintiff had committed a crime.

35. Plaintiff walked towards his vehicle and Defendant PRUDEN followed him tauntingly saying "Oh, this your car? This your car? This your car? This your car?"

36. PRUDEN then said, "my car better than yours," while crowding and harassing Plaintiff as Plaintiff attempted to get into his vehicle to get away from PRUDEN.

37. At no point did PRUDEN issue a lawful order to Plaintiff or tell him that he was under arrest or detained.

38. Defendant PRUDEN walked into Plaintiff's car door as it was being opened.

39. Defendant PRUDEN was not injured.

40. Upon information and belief, Defendant PRUDEN was not annoyed or alarmed, nor could he be as he saw the door opening and intentionally walked into it to justify his subsequent actions.

41. Upon information and belief, Defendant PRUDEN later falsely claimed that Plaintiff intentionally struck him with the car door.

42. Upon information and belief, Defendant PRUDEN later falsely claimed that Plaintiff intentionally struck him with the car door in order to falsely arrest him.

43. Upon information and belief, Defendant PRUDEN later falsely claimed that Plaintiff struck him with the car door to justify the use of force against Plaintiff and his arrest.

44. Upon information and belief, Defendant PRUDEN later falsely claimed that Plaintiff struck him with the car door to maliciously prosecute Plaintiff and punish him for his exercise of his free speech rights.

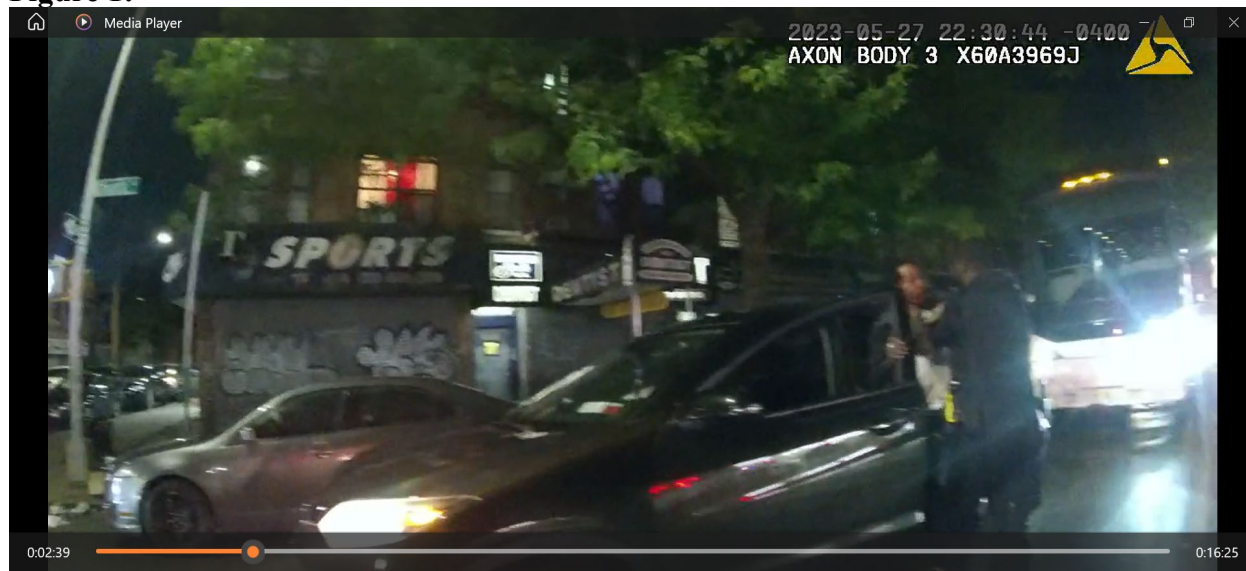
45. PRUDEN then began assaulting, battering, and using excessive force against Plaintiff.

46. Defendant PORCELLI observed these events unfold but did nothing to intervene and did in fact assist PRUDEN in assaulting, battering, using excessive force against and falsely arresting Plaintiff.

47. Upon information and belief, Defendant PORCELLI later falsely claimed that he could not observe the incident because he was getting a summons from the police vehicle.

48. Figure 1 below, is a true and accurate still from the Body Worn Camera (BWC) worn by PORCELLI.

Figure 1:



49. Upon information and belief, Defendant PORCELLI observed the false arrest and excessive force, including his observations that PRUDEN instigated and occasioned the entire event and still assisted PRUDEN in falsely arresting and using excessive force against Plaintiff.

50. Plaintiff did not resist arrest but PRUDEN and PORCELLI tossed him around like a ragdoll to injure him.

51. Upon information and belief, Defendants PRUDEN and PORCELLI both intentionally loosened and/or removed their body worn cameras during the excessive force to prevent the videotaping of the incident.

52. Defendant PRUDEN was kneeling on Plaintiff's neck causing bystanders to intervene with one woman yelling "you're too large!" to Defendant PRUDEN.

53. Defendant PORCELLI did nothing to intervene and used excessive force against Plaintiff.

54. Defendant JOHNATHAN MIRANDA arrived at the scene and observed that Defendants PRUDEN and PORCELLI were using excessive force against Plaintiff.

55. Defendant MIRANDA failed to intervene to prevent excessive force being used

against Plaintiff.

56. Thereafter, Defendant JERRY SUKHNANDAN arrived at the scene.

57. A crowd who had observed the events gathered and told the officers, including the SUKHNANDAN and MIRANDA that PRUDEN and PORCELLI had falsely arrested Plaintiff and used excessive force against him because the officers were “upset” that they could not issue a summons to the woman who ran away and “took it out” on Plaintiff.

58. Upon information and belief, Defendants PORCELLI and PRUDEN also heard the accusations but did not say anything to defend themselves as the accusations were true.

59. Upon information and belief, the officers on scene including SUKHNANDAN and MIRANDA knew this was likely true based on the circumstances at hand, their knowledge of the laws of the State of New York, and their knowledge of the skills, abilities, reputations, and/or characters of PORCELLI and PRUDEN.

60. Upon information and belief, the officers on scene including SUKHNANDAN and MIRANDA knew this was likely true based on their knowledge that PORCELLI and PRUDEN had been instructed to write summonses or to get activity by the end of the month.

61. Upon information and belief, SUKHNANDAN and MIRANDA knew this was likely true based on their knowledge that PORCELLI and PRUDEN had been instructed to write summonses or to get activity by the end of the month.

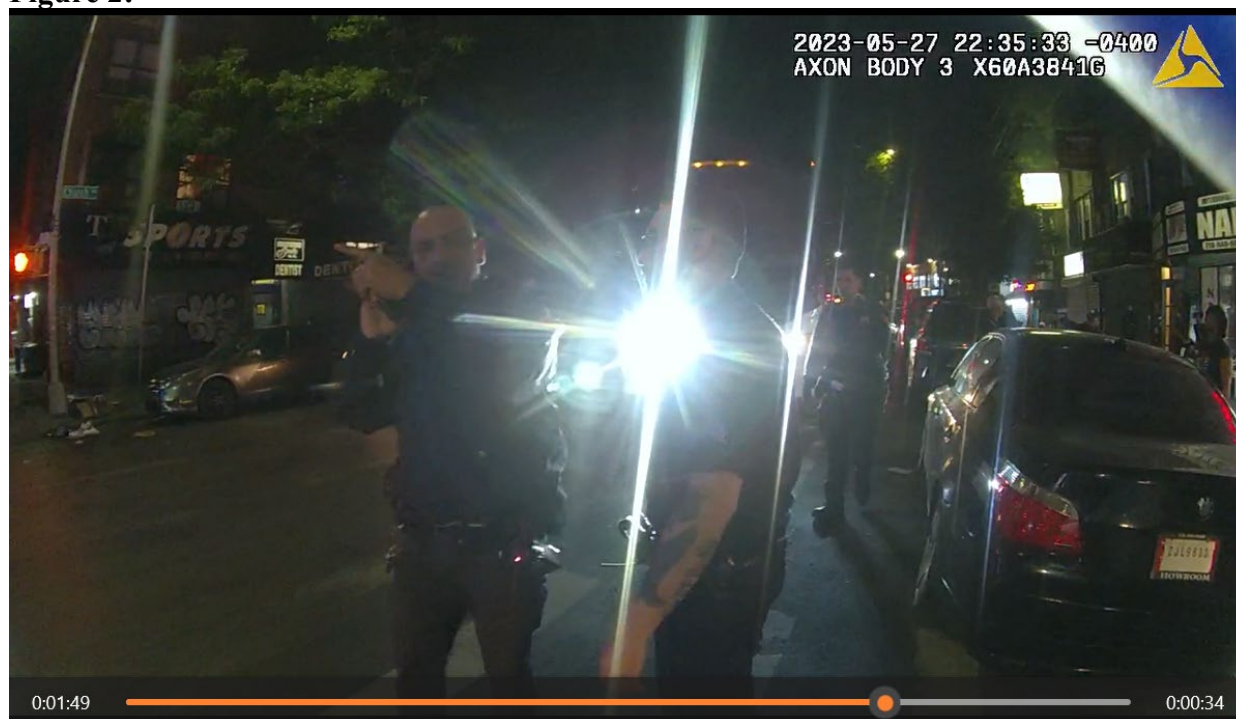
62. Upon information and belief, SUKHNANDAN and MIRANDA both knew or should have known that PORCELLI and PRUDEN’s claims about how the incident occurred were false but failed to intervene to release Plaintiff.

63. Upon information and belief, SUKHNANDAN, in the presence of MIRANDA, called PRUDEN from the scene while he and PORCELLI were in their vehicle returning to the

precinct.

64. Upon information and belief, while doing so, SUKHNANDAN, instructed an officer who was wearing his BWC to walk away from him so that the conversation was not recorded as demonstrated by Figure 2 below which is a true and accurate still from a BWC of an officer at the scene.

Figure 2:



65. At the same time, PRUDEN turned his camera around to face the Plaintiff in the back seat of the vehicle.

66. Upon information and belief, SUKHNANDAN questioned PRUDEN about why Plaintiff was arrested because he knew and/or believed that the arrest was false and that PRUDEN and PORCELLI had engaged in misconduct.

67. SUKHNANDAN and MIRANDA failed to intervene to release Plaintiff.

68. Defendants detained Plaintiff's vehicle and illegally searched it.

69. Defendants refused to call Plaintiff an ambulance until he was in custody for many

hours.

70. Defendants failed and/or refused to obtain timely medical attention for Plaintiff in violation of Plaintiff's Constitutional and human rights.

71. Defendants failed and/or refused to call an ambulance for plaintiff until 5:26 a.m. the next day.

72. Defendants falsely claimed in the arrest report that no force was used against plaintiff before or during his arrest.

73. Upon information and belief, Defendants failed to alert the NYPD that force was used against the Plaintiff, thus thwarting an investigation into their misconduct.

74. Upon information and belief, Defendants falsely reported that Plaintiff's injuries – including his fractured wrist – occurred prior to the incident which they told other officers who recorded the information in Plaintiff's Medical Treatment of Prisoner form

75. Defendants attempted to cover up their unlawful acts by making and/or approving clear misstatements and/or false allegations in official NYPD paperwork.

76. Defendants knew or should have known that the false statements made in official paperwork would be submitted to the District Attorney and used to prosecute Plaintiff and/or support the false statements made by the defendants.

77. Anyone viewing the footage from Defendants' Body Worn Cameras (BWC) knew or should have known that Plaintiff's arrest was retaliatory.

78. Anyone viewing the footage from Defendants' BWCs knew or should have known that Plaintiff's arrest was not supported by probable cause.

79. Anyone viewing the footage from Defendants' BWCs knew or should have known that PRUDEN and PORCELLI had lied about the circumstances that led them to arrest Plaintiff.

80. Anyone viewing the footage from Defendants' BWCs knew or should have known that the force used against Plaintiff was not justified.

81. Defendants wrote on Plaintiff's pedigree card that he was arrested for disorderly conduct and Second-Degree Assault which was later crossed out.

82. Defendant PRUDEN initially attempted to charge Plaintiff with the violation of Penal Law § 195.05 for alleged Obstructing Governmental Administration in the Second Degree and Penal Law § 222.30 for alleged possession of marijuana.

83. Defendants charged Plaintiff with the violation of Penal Law § 195.05 for alleged Obstructing Governmental Administration in the Second Degree and Penal Law § 240.26(1) for Harassment the Second Degree.

84. Upon information and belief, Defendants were unaware that there was an open "i-Card" for criminal mischief for Plaintiff until on or about May 28, 2023, at 02:21 a.m.

85. Upon information and belief, Defendants knew or should have known that this i-Card was not based on probable cause.

86. Upon information and belief, Defendants knew or should have known that this i-Card was facially insufficient.

87. The only alleged basis of the i-Card was the claim of an employee that Plaintiff slammed a door at a store and caused the glass to break.

88. Upon information and belief, Defendant PRUDEN signed a criminal complaint under penalty of perjury stating that he had spoken to the alleged witness for the i-Card incident when he had not.

89. Upon information and belief, Defendant PRUDEN signed a criminal complaint under penalty of perjury stating that Plaintiff violated Penal Law §§ 195.05 and 240.26(1) which

PRUDEN knew to be false.

90. The prosecutor, relying on Defendants' false information and false evidence, charged Plaintiff with crimes.

91. Defendants, acting in concert, made false statements in NYPD paperwork in support of these charges which they knew would be used to prosecute Plaintiff and to justify the unlawful acts committed against him.

92. Defendants knew that these charges instituted against Plaintiff were false.

93. Defendants knew that these charges instituted against Plaintiff were facially insufficient.

94. Plaintiff was arraigned on or about May 28, 2023, and thereafter released on his own recognizance.

95. Plaintiff was made to return to Court multiple times.

96. On or about August 29, 2023, the Kings County District Attorney's Office moved to dismiss both dockets against the Plaintiff.

97. The Kings County District Attorney's Office's internal notes disclose that the arrest related to the i-Card was dismissed due to "insufficient evidence."

98. The Kings County District Attorney's Office's internal notes disclose that the arrest related to the i-Card was dismissed due to "insufficient evidence."

99. On or about August 29, 2023, the Criminal Court granted the Kings County District Attorney's Office's motion to dismiss, thus terminating the matter in Plaintiff's favor as a matter of law.

100. At all times hereinafter mentioned, Defendants had a duty to intervene in the unlawful acts and misconduct committed by their co-Defendants but failed to do so.

101. Defendants processed Plaintiff's arrest, prepared paperwork related to his arrest, and conferred with the District Attorney's office to bring criminal charges against Plaintiff.

102. Defendants communicated with a representative of the District Attorney's Office and presented false information and/or misleading evidence to the prosecutor despite knowledge that this information would be used to prosecute Plaintiff.

103. Defendants communicated with a representative of the District Attorney's Office and failed to provide the District Attorney with relevant information, including exculpatory information that would have terminated and/or prevented the prosecution of Plaintiff.

FACTS RELEVANT TO PLAINTIFF'S *MONELL* CLAIM
AND RELATED STATE LAW CLAIMS

104. Upon information and belief, the CITY knew or reasonably should have known that Defendants were unfit to be uniformed law enforcement officers prior to the date of incident.

105. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior incidents of misconduct.

106. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior incidents of perjury and/or the submission of false and/or inaccurate misstatements in official records.

107. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior incidents that were proof or indicia of corruption.

108. Upon information and belief, the CITY knew or reasonably should have known that Defendants had engaged in prior incidents that were proof or indicia of violent propensities to injure, abuse, and/or commit civil rights violations.

109. Upon information and belief, the CITY knew or reasonably should have known that

Defendants had engaged in prior behavior that was proof or indicia of an inability to control their anger and/or other inappropriate behavior.

110. The CITY failed to investigate the prior incidents, complaints, and/or information it had regarding Defendants.

111. The CITY failed to conduct proper background investigations of Defendants at the time they were hired.

112. The CITY failed to conduct proper investigations of Defendants after receiving serious complaints about Defendants behaviors, propensities, and/or conduct.

113. The CITY failed to intervene to reprimand, retrain, punish, and terminate Defendants.

114. These failures are not isolated incidents, but rather, the natural and probable consequence of the CITY's longstanding failure to investigate, monitor, punish, and otherwise intervene in the misconduct, corruption, and criminal acts committed by members of the NYPD, including Defendants.

115. These failures are also the natural and probable consequence of the CITY's longstanding failure to encourage, assist, and train its officers to report and intervene in misconduct they observe and/or failure to punish officers for failing to intervene as required by law, and department guidelines.

116. Despite the prior findings by the Mollen Commission which exposed mismanagement, coverup, and corruption in the punishment precinct level disciplinary process, the CITY allowed the majority of the incidents involving Defendants to be "resolved" at the precinct or borough level instead of to be investigated by the Internal Affairs Bureau.

117. The CITY, through its NYPD, has reduced the effectiveness of its internal

discipline through the use of the Threat, Resistance, Injury (TRI) report process which allows officers, with the assistance of a supervisor, to ensure that IAB is not called to investigate incidents.

118. The CITY's failures stretch back at least as far as the Mollen Commission which revealed rampant abuse, corruption, and criminal activity by NYPD officers and a persistent failure and/or refusal to investigate these acts and omissions in order prevent oversight and/or a broadening of investigations into the misconduct endemic to of the NYPD and/or to prevent embarrassment of the department via public awareness and news reporting of incidents of misconduct which often results in the termination of both high-ranking and rank-and-file members.

I. For Nearly 30 Years, the CITY has Prevented Significant Independent Inquiry into the NYPD

119. On July 7, 1994, chaired by the Hon. Milton Mollen, the eponymous Mollen Commission, released its public final report titled "The City of New York Commission to Investigate Allegations of Police Corruption and the Anti-Corruption Procedures of the Police Department" [hereinafter "Mollen Comm'n Final Report" or "Final Report"].

120. The Mollen Commission's findings, as discussed more thoroughly below, were explosive, and evidenced a systematic, and sometimes intentional failure, at every level of the NYPD to investigate corruption, abuse, and misconduct by its officers including sometimes high-ranking members of the NYPD.

121. The corruption, abuse, and misconduct exposed by the Mollen Commission included, but was not limited to: police officers robbing drug dealers, selling drugs and guns that they had stolen, randomly assaulting and battering citizens for fun, raping sex workers, running protection for gang members and drug dealers, engaging in bribery scams including with tow truck operators and those they issued summonses to, drinking and doing drugs while on and off duty,

burglarizing/robbing/stealing guns, drugs, money, and valuables from citizens, tampering with evidence including carrying “drop guns” and other evidence to plant on arrestees and/or those they may shoot, frequently committing perjury and/or submitting false information to prosecutors to secure convictions and/or cover up their misdeeds, as well as a general wide-spread refusal to report colleagues who commit misconduct and crimes.¹

122. Prior to the Mollen Commission, the Knapp Commission (1970-1973), the Helfand Investigation (1949-1950), the Seabury Investigation (1932), the Curran Committee (1912), and the Lexow Commission (1895) each exposed patterns of corruption and abuse at the NYPD.

123. Nearly every twenty years, the then existing patterns and practices of widespread corruption and abuse at the NYPD were exposed by these independent commissions.

124. It has been almost 30 years since the Mollen Commission issued its final report.

125. Following the Mollen Commission’s bombshell hearings and reports, the CITY formed the Commission to Combat Police Corruption (CCPC) which is allegedly an independent panel formed to monitor and evaluate the anti-corruption efforts of the NYPD which were found to be largely ineffective, at times intentionally so, by the Mollen Commission.

126. The CCPC has no authority to investigate instances of police corruption or misconduct, it merely issues annual reports on whether, in its determination, the NYPD is effectively monitoring investigating and corruption, based on the information that NYPD deigns to offer it.

127. All members of the CCPC are appointed by the Mayor of the CITY and serve at his pleasure.

¹ Mollen Comm’n Final Report, (July 7, 1994) available online at: www.nyc.gov/assets/doi/images/content/timeline/MollenCommissionNYPD.pdf (last accessed Nov. 26, 2023).

128. The CCPC cannot even issue a subpoena unless the Department of Investigation (DOI), a mayoral agency of the CITY, and thus, part of the CITY itself, allows it to.

129. Upon information and belief, the CCPC was not created for its stated reasons alone, but also and/or solely to offer the appearance of sufficient independent oversight in order to avoid the appointment of another commission like the Mollen Commission which would have the power to issue subpoenas, conduct independent investigations, and to make findings supported by evidence.

130. As discussed by the Mollen Commission at length, the NYPD has a pattern and practice of endangering the safety of the public by allowing officers who commit misconduct and/or are otherwise abusive and/or corrupt, to avoid detection, prosecution, discipline, and termination, to spare the department potential embarrassment and/or to prevent civil and/or criminal consequences for those who commit, support, and/or turn a blind eye to rampant misconduct, corruption, and abuse at NYPD.

131. An independent commission, with at least the powers and independence granted to the Mollen Commission is both long overdue and desperately needed.

132. The Mollen Commission's Final Report is incorporated hereto by reference.²

133. The CITY received the findings, testimony, evidence, and facts relied upon and reported by the Mollen Commission and has had the findings in its possession for nearly thirty years.

² Portions of the Final Report are available at the link at FN1. Plaintiff is limited by the facts presently known and available to Plaintiff and will seek discovery of the full Mollen Commission files as in the CITY's possession during discovery.

II. Of “Rats” and Policemen:

134. As succinctly stated by the Mollen Commission, “the problem of police corruption extends far beyond the corrupt cop. It is a multi-faceted problem that has flourished in parts of our City not only because of opportunity and greed, but because of **a police culture that exalts loyalty over integrity; because of the silence of honest officers who fear the consequences of “ratting” on another cop no matter how grave the crime...**”³

135. Consistent with the issues reported by the Mollen Commission thirty years ago, officers today do not report misconduct, abuse, and criminal acts of their fellow officers for fear of being “labeled a “rat” [and because they] lack[] confidence in the Department’s commitment to uncover corruption and maintain confidentiality.”

136. The Mollen Commission also noted that officers had told them “that their careers would be ruined” if they reported a fellow officer’s misconduct and that “[t]he evidence shows that this belief was not unfounded.”

137. As in the days of the Mollen Commission, the NYPD continues to ensure it is difficult and dangerous for officers to report misconduct.

138. Despite the NYPD’s actual knowledge for more than thirty years that members of its force were in large numbers failing, to report corruption, fraud, abuse, misconduct and criminal acts by their fellow officers, and thus, themselves committing unlawful acts, civil rights violations, and misconduct, the CITY has done little, if anything, to make officers more likely to intervene in the unlawful acts of their colleagues or even to report same.

139. Here, the individual Defendants as well as the numerous other NYPD officers witnessed the force used against Plaintiff, his denial of medical treatment, and who witnessed and/or

³ Mollen Comm’n Final Report at FN1, page 4 (emphasis added).

knew about the false statements made against him, while he was handcuffed at the precinct, but did nothing, and said nothing, thereby ensuring that the blatant constitutional violations committed in their presence continued, including further physical assault, and denial of medical treatment.

140. Patrol Guide 221-10 contains the following three sentences which have remained virtually unchanged for decades: “Failure to intervene in the use of excessive force or report excessive force or failure to request or ensure timely medical treatment for an individual is serious misconduct that may result in criminal and civil liability and will result in department discipline up to and including dismissal. If a member of service becomes aware of the use of excessive force or failure to request or ensure timely medical treatment for an individual, the member must report such misconduct to the Internal Affairs Bureau Command Center. This report can be made anonymously.”⁴

141. The policy does not provide any information on how to contact IAB or what protections will be given to officers who cooperate with “the rat squad” as IAB is commonly referred to by officers.

142. The policy does not discuss the protections for whistleblowers or provide any information that would allow an officer to feel comfortable reporting a use of force that was unconstitutional given that they too will be deemed a “rat” for doing so.

143. The policy does not even include the number that officers can call to make such a report.

144. The NYPD does not even provide any elaboration on this three-sentence policy, buried among thousands of pages of other policies.

145. Despite the three-sentence policy promulgated by the CITY, the actual custom and practice of the NYPD is that when an NYPD officer reports on another officer, they are a “rat” forever

⁴ NYPD Patrol Guide 221-10.

and face perpetual ostracization.

146. The NYPD even has a custom and practice of identifying and thereby deriding an officer who seeks to follow the rules, including the Patrol Guide, and the laws of the State of New York, as a “shakebox” or “shakey” indicating they are not “good cops” or “on the level” cops who and cannot be trusted with preferential assignments or even invited to after work events.

147. Being labeled “a rat” is worse still and is often the death knell of any NYPD career.

148. Reporting fellow officers in an organization as insular as the NYPD, is regarded as an act of social deviance, that feels like a criminal act and is often treated like one.

149. As former Detective Jeffrey McAvoy recalled to the New York Times, when he called IAB in 2008 to report a lieutenant of stealing thousands of dollars from a drug dealer, he was physically ill at the idea of following this policy: “I went to the bathroom about a dozen times and threw up, actually physically threw up, before I made the call.”⁵

150. Other officers labeled “rats” have been bullied, harassed, and ostracized by those they once considered not just coworkers, but family.

151. Some officers labeled “rats” or who have testified about the crimes of other officers have been pushed out of the department, and some have attempted suicide.

152. In 2011, a NYPD officer and union delegate allegedly touched the third rail of the one train in a suicide attempt after being subpoenaed to testify in the Bronx ticket fixing inquiry.

153. Being labeled a “rat” can also get an officer killed.

154. As former NYPD police officer Bernard Cawley put it when he testified before the Mollen Commission: “...it was the Blue Wall of Silence. Cops don’t tell on cops. And if they did

⁵ Goldstein, J. N.Y. Times, (Jun. 24, 2012), “Officers, Exhorted to Report Corruption, Still Fear Retaliation” available at: <https://www.nytimes.com/2012/06/25/nyregion/new-york-police-officers-face-retaliation-for-reporting-corruption.html> (last accessed Feb. 26, 2024).

tell on them, **just say if a cop decided to tell on me, his career's ruined. He's going to be labeled as a rat....And chances are if it comes down to it, they're going to let him get hurt.**"⁶

155. Moreover, despite providing training and instruction for literally every possible piece of paperwork that may be filled out and endless videos and tactical training scenarios for situations that most officers will never encounter, the NYPD appears to provide zero training or instruction on how to effectively intervene in excessive force, false arrest, and/or other misconduct and civil rights violations, or how to safely report their fellow officers.

156. The NYPD has failed to develop specific and realistic instruction or regular training on how to navigate detecting, intervening in, and reporting misconduct, including the use of excessive force.

157. The NYPD has also failed to investigate and discipline instances where officers are present for or know about misconduct, including excessive force, but fail to intervene and/or report it.

158. This sends a clear message that if an officer witnesses their fellow officer commit acts of corruption, misconduct, or even crimes – they should keep their mouth shut.

159. In fact, the Mollen Commission heard testimony that officers had been explicitly told at roll call “if you get caught, keep your mouth shut.”⁷

160. THE CITY OF NEW YORK knows to a moral certainty that failing to provide training and policies on how to intervene in and report misconduct make it unlikely that anyone will report misconduct or intervene to stop it from occurring.

161. THE CITY OF NEW YORK knows to a moral certainty that allowing these customs

⁶ Testimony of Bernard Cawley before the Mollen Commission available at: https://youtu.be/L_1hxKgFsWw?si=JGtFz8lw2wmESKK1 (last accessed Nov. 26, 2023).

⁷ Mollen Comm'n Final Report at *3.

and practices to continue allows serious misconduct to go unreported and encourages officers, including those who witness misconduct, to present false evidence and/or false information in official reports and/or to the prosecution in order to assist in covering up misconduct.

162. THE CITY OF NEW YORK knows to a moral certainty that its acts and omissions will allow officers who commit significant misconduct, including civil rights violations, to remain on the job where they can harm people – including people like Plaintiff.

163. THE CITY OF NEW YORK knows to a moral certainty that failing to enact policies to make it easier and safer for officers to report misconduct will mean that most constitutional violations, including egregious violations involving deaths and horrific acts, will go unreported or will be actively covered up.

164. THE CITY OF NEW YORK has done nothing to revise its policies or training to prevent these inevitable consequences of its failures from harming citizens like Plaintiff.

III. 'TRI' Not to Call IAB:

165. Following the July 17, 2014, homicide of Eric Garner, and the November 20, 2014, homicide of Akai Gurley, both at the hands of NYPD officers, the NYPD made significant changes to its investigations of excessive force.

166. Those changes have, upon information and belief, prevented the independent and uncorrupted investigation into acts of excessive force and assisted officers in covering up incidents of excessive force, including by preventing IAB from investigating serious incidents like the one at issue here.

167. Prior to 2015, when a NYPD officer used excessive force that caused death or significant injury, the incident resulted in a “callout” to IAB who would dispatch officers to interview

injured arrestees or investigate deaths independent of the rest of the NYPD.

168. In 2015, the NYPD developed the Force Investigations Division (FID) which was allegedly created to investigate uses of force.

169. The policy changes mandated that where NYPD officers discharged their firearms, and/or where an arrestee died, or was likely to die following an interaction with NYPD, the FID would have sole jurisdiction to investigate whether the force used was justified.

170. The policy changes essentially divested the authority of IAB to investigate any deaths at the hands of NYPD.

171. FID is not independent in the manner that IAB was intended to be.

172. Upon information and belief, the true purpose of FID was to usurp the jurisdiction of IAB in serious force cases, including all death cases so that the investigation can be guided to find that the officers were justified in using force, including deadly force.

173. IAB investigations of custodial deaths had led to multiple prosecutions of NYPD officers prior to the development of FID.

174. Upon information and belief, to date, FID's investigations have not led to any prosecutions of NYPD officers.

175. Upon information and belief, FID spends most of its extensive resources gathering evidence to justify uses of excessive force, discredit witnesses who do not support the NYPD's narrative, delaying questioning of the subject officers, and controlling evidence (including in allowing significant evidence to be ignored) collection from crime scenes of serious including fatal, uses of police force.

176. Upon information and belief, to date, FID has consistently found that every NYPD officer who used fatal force was justified in doing so.

177. Upon information and belief, to date, FID has consistently found that every NYPD officer who used fatal force was justified in doing so.

178. Upon information and belief, FID is consistently staffed with investigators who lack the knowledge, skills, abilities, and work-ethic to conduct a complex investigation, and/or those who have significant force histories, corruption histories, and/or credibility issues – thus leaving investigations vulnerable to both substandard police work and corruption.

179. On May 27, 2016, the NYPD revised its Force Policy reporting guide and implemented the TRI report.

180. Figure 3 below is a true and accurate copy of the first page of the May 27, 2016, Force Policy Revision:

Figure 3:

PATROL GUIDE 221 TACTICAL OPERATIONS

USE OF FORCE – INVESTIGATIVE RESPONSIBILITY AND REPORTING GUIDE

LEVEL OF FORCE	EXAMPLES OF FORCE	OR	TYPE OF INJURY	SUPERVISOR	METHOD OF REPORTING
LEVEL 1	• Hand or foot strike • Forceful take-down • Wrestling a subject to ground • OC spray • CEW/Taser in cartridge mode • Mesh restraining blanket		• Physical injury • Alleged¹ excessive Level 1 force with no injury	Immediate Supervisor (Must be one rank above the subject officer) <i>CEW/Taser = Lieutenant or Above³</i>	Threat, Resistance, or Injury Incident Worksheet
LEVEL 2	• Intentional striking of a subject with an object (e.g. impact weapon) • Police canine bite • CEW/Taser in drive stun mode		• Substantial physical injury • Alleged or suspected² excessive force with physical or substantial physical injury • Attempted suicide by prisoner	C.O./X.O./Duty Captain (Must respond to scene) <i>Borough Investigations Unit May Assist</i>	Threat, Resistance, or Injury Incident Worksheet & Investigating Supervisor Assessment Report
LEVEL 3	• Deadly physical force ◦ Physical force that is readily capable of causing death or serious physical injury		• Serious physical injury • Alleged or suspected excessive force with serious physical injury • Attempted suicide by prisoner with serious physical injury	Internal Affairs Bureau (Must respond to scene)	Threat, Resistance, or Injury Incident Worksheet & Investigating Supervisor Assessment Report
FIREARM DISCHARGE	• Discharge of a firearm		• Person dies • Seriously injured and likely to die immediately prior to police custody, during apprehension, or while in police custody	Force Investigation Division (Must respond to scene)	Threat, Resistance, or Injury Incident Worksheet & Typed Letterhead (UF49)

>ALLEGATIONS¹ of excessive force are typically made by civilian witnesses or subjects while SUSPICION² of excessive force typically arises from a supervisor's initial assessment or subsequent investigation into an incident.

>Discharge of a CEW/Taser requires the Immediate/Investigating Supervisor to be in the rank of Lieutenant or above (discharges by ESU may be handled by a Sergeant).³

>Ordering a subject to lay on the ground or guiding them in a controlled manner, drawing your firearm, using Velcro restraint straps, or using a polycarbonate shield to restrain someone is not considered a reportable use of force in the context of this procedure.

>If one incident contains multiple MOS using varying levels of force or non-MOS receive varying levels of injury, the supervisor responsible for the highest force/injury level will conduct the investigation.

>A TRI-Investigating Supervisor Assessment Report is completed by the CO/XO/Duty Captain or IAB to document the results of their investigation of a Level 2 or 3 incident.

181. Prior to the use of the TRI report, IAB was called to the scene of in-custody injuries that resulted in a visit to the hospital.

182. With the advent of the TRI report, if a supervisor claims or asserts that an injury occurred before the arrest, there is no investigation.

183. With the advent of the TRI report, if a supervisor claims or asserts that an injury was not serious, there is no IAB investigation unless the officers admit they used deadly physical force.

184. With the advent of the TRI report, if a supervisor claims or asserts that an injury was not serious, even where the injury required a visit to the hospital, but the arrestee was not admitted, there is no IAB investigation unless the officers admit they used deadly physical force (except for a firearm discharge which is only investigated by FID).

185. With the advent of the TRI report, if an officer claims or asserts that an injury occurred prior to custody, even where the injury required a visit to the hospital, there is no IAB investigation unless the officers admit they used deadly physical force (except for a firearm discharge which is only investigated by FID).

186. Despite the NYPD defining serious physical injury to include fractured/broken bones or any injury from police action or contact resulting in hospital admission, Defendants falsely reported that Plaintiff was not seriously injured to avoid IAB investigation.

187. Despite the NYPD defining serious physical injury to include fractured/broken bones or any injury from police action or contact resulting in hospital admission, Defendants falsely reported that Plaintiff was not seriously injured to avoid IAB investigation.

188. This new scheme results in fewer investigations into force being conducted by IAB and therefore, decisions about whether force was excessive are being handled at the precinct or borough level.

189. The Mollen Commission explicitly warned about this type of approach which can lead to a lack of investigation at the precinct and borough level when incidents, like the one at hand, are not investigated or not sufficiently investigated or categorized.⁸

190. This allows officers who are serial offenders of force incidents and other corruption to go undetected in a similar manner to the way that the similar setup including borough investigations and “tickler files,” allowed officers like Bernard Cawley and Michael Dowd to engage in uncontrolled acts of corruption and abuse.

191. As the Mollen Commission demonstrated, the officers with the most complaints including even complaints for discourtesy and suspected corruption and theft, were the most likely to be engaged in rampant abuse including excessive force, corruption, and criminal activity.

IV. Histories of the Defendants:

192. Plaintiff does not presently have access to all relevant records for each Defendant, however, even the limited records available demonstrate that at least some of the Individual Defendants have significant corruption, misconduct, abuse, and excessive force histories.

193. Moreover, PRUDEN and PORCELLI are extremely new to police work and there are indications that Defendant CITY failed to investigate their backgrounds prior to hiring them.

194. Upon information and belief, the video indicates that PRUDEN is under close watch by his superiors who even directed other officers to monitor him while he was alone with Plaintiff.

195. The CITY has failed to sufficiently investigate, properly retrain, supervise, and

⁸ See Mollen Comm’n Final Report, Section V “Fragmenting, Minimizing, and Concealing Police Corruption Cases” at 90-100.

terminate each of the Defendants.

V. NYPD's Unlawful Arrest and Summons Quotas:

196. Although persistently denied by the NYPD, it has been accused of implementing a covert quota system to encourage officers to make arrests and issue summonses.

197. It is well known that quota demands often weigh heavy upon officers toward the end of the month as the reports of a precinct's "activity" or the number of arrests, and summonses issued, are frequently discussed at the Department's CompStat meetings.

198. In a decision issued by Judge Shira Scheindlin in *Floyd v. City of New York*, 08 Civ. 1034 (SDNY, Aug. 12, 2013), the Court held that "evidence supports plaintiffs' argument that the NYPD pressured officers to increase stops without due regard to the constitutionality of those stops."

199. As noted in an October 22, 2010, memorandum issued by then Chief of Patrol James Hall Officer Hall, the NYPD has always been aware that quotas "could result in an officer taking enforcement action for the purpose of meeting a quota rather than because a violation of the law has occurred."

200. As discussed in the above *Floyd* decision, multiple officers have provided evidence that they were given quotas and punished and/or threatened with punishment if the quotas were not carried out. *Id.* at 596-600.

201. The entirety of the above *Floyd* decision is hereby incorporated by reference. *Id.*

202. NYPD knows or should know that, when faced with the pressure to make arrests and issue summonses, even where they lack probable cause, officers will often make the wrong choice and violate the Constitution.

203. NYPD also knows or should know that, when faced with the pressure to prove their

effectiveness, commanding officers and others responsible for a precinct, will often resort to issuing quota directives, even where they know officers will make arrests and issue summonses without probable cause.

ALLEGATIONS RELATED TO DEFENDANTS' CIVIL CONSPIRACY

204. Defendants engaged in a civil conspiracy, and/or common scheme which connects and/or links each Defendant with each of the causes of action alleged herein.

205. Defendants conspired and/or otherwise agreed among themselves and/or other agents, servants, and/or employees of the CITY, to cover up the unlawful acts committed against Plaintiff during and after his arrest.

206. Upon information and belief, Defendants carried out overt acts in furtherance of their conspiracy and/or agreement to cover up their misconduct, including the excessive force used against Plaintiff, including, but not limited to: Refusing to report the acts and omissions committed by Defendants to the NYPD's Internal Affairs Bureau (IAB); and falsely reporting that Plaintiff was injured prior to custody; and hiding, destroying, and/or spoliating evidence of Defendants acts and omissions which constituted civil rights violations; and failing to document or notify any supervisor that Plaintiff had any force used against him or that he was injured by Defendants; denying Plaintiff adequate and timely medical treatment and care; Making false statements in official paperwork; and Making false statements to the District Attorney; and Making false statements to CCRB and/or Internal Affairs.

207. Defendants carried out these acts intentionally, and in furtherance of their conspiracy.

208. The Defendants were not present during the initial incident, ratified the conduct thereafter by joining in the conspiracy to cover up the misconduct including the use of excessive

force against Plaintiff, his false arrest, and the retaliation for his exercise of his First Amendment rights.

209. Upon information and belief, Defendants had carried out similar conspiracies on prior dates.

210. Each conspirator engaged in these acts to protect themselves and their colleagues, but more so, because of deep-seated patterns and practices to do so in order to protect the reputation of the NYPD and its officers.

211. Defendants' conspiracy resulted in damage and/or injury to Plaintiff.

212. Defendants' conspiracy links each Defendant to each of the state law causes of action described below.

DAMAGES

213. As a direct and proximate result of conduct of Defendants heretofore and hereafter set forth, Plaintiff suffered, and continues to suffer, injuries and damages that exceed all jurisdictional limits of the lower courts, including, but not limited to:

- a. violation of Plaintiff's rights under the First, Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and their analogues under the New York State Constitution;
- b. violation of Plaintiff's rights under New York State and City law;
- c. severe physical injuries and pain and suffering;
- d. emotional distress, including fear, embarrassment, frustration, extreme inconvenience, and anxiety;
- e. loss of liberty and unlawful confinement, including during subsequent appearances in criminal court where Plaintiff was forced to contest the false charges initiated by

Defendants;

f. economic damage and loss;

214. Defendants are not entitled to raise the defense of contributory negligence for any claims brought pursuant to statute including 42 U.S.C. § 1983.

215. Pursuant to CPLR 1603, all causes of action alleged herein are exempt from the operation of CPLR 1601 by reason of one or more of the exemptions provided in CPLR 1602, including but not limited to, CPLR 1602(2), CPLR 1602(5), 1602(7) and 1602(11), and because Article 16 does not apply to civil rights claims, thus precluding defendants from limiting their liability by apportioning some portion of liability to any joint tortfeasor.

FIRST CAUSE OF ACTION

**Excessive Force and First Amendment Retaliation Pursuant to 42 U.S.C. § 1983
As well as Pursuant to the New York State Constitution Article § 8
*Against Defendants PRUDEN and PORCELLI***

216. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

217. At all times relevant herein, Defendants PRUDEN and PORCELLI were acting under color of state law.

218. At all times relevant herein, the Individual Defendants' actions deprived Plaintiff of rights, privileges, and immunities secured by the laws of the United States and the United States Constitution.

219. At all times relevant herein, the Individual Defendants' intentionally, and without probable cause to do so, seized and/or confined Plaintiff in an excessive manner, causing him physical injury.

220. At all times relevant herein, Defendants PRUDEN and PORCELLI retaliated against Plaintiff for his lawful exercise of his rights under the First Amendment of the United States Constitution.

221. At all times relevant herein, Defendants PRUDEN and PORCELLI retaliated against Plaintiff for his lawful exercise of his rights under Article I § 8 of the New York State Constitution.

222. Defendants acts and omissions would chill the exercise of these speech rights by a reasonable person.

223. At all times relevant herein, the force used by the Individual Defendants was beyond that which was warranted by the objective circumstances at the time each incident occurred.

224. At all times relevant herein, the force used by the Individual Defendants, including that which was used after Plaintiff's arrest, amounted to punishment without due process.

225. Defendants' conduct deprived Plaintiff of his right under the First, Fourth, and Fourteenth Amendments to the United States Constitution to be free from excessive force and to free speech.

226. Defendants' conduct deprived Plaintiff of his right under the First, Fourth, and Fourteenth Amendments to the United States Constitution to be free from punishment without due process of law.

227. At all times relevant herein, the Individual Defendants failed to intervene in each other's obviously illegal actions.

228. Defendants' conduct deprived Plaintiff of his rights pursuant to the First, Fourth, and Fourteenth Amendments to the United States Constitution.

229. Plaintiff was injured as a direct and proximate result of Defendants' violation of his rights, in an amount that exceeds the jurisdictional limits of all lower courts.

SECOND CAUSE OF ACTION

**Assault and Battery
*Against All Defendants***

230. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

231. Defendants' intentional conduct placed Plaintiff in imminent apprehension of harmful and/or offensive touching.

232. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him.

233. Defendants used excessive and otherwise unjustified force against the plaintiff.

234. Defendant CITY is responsible for the tortious acts and omissions of its agents, servants, and employees, including, but not limited to the Individual Defendants and those officers who failed to intervene, pursuant to the doctrine of *respondeat superior*.

235. As a direct and proximate result of Defendants' acts and omissions Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts.

THIRD CAUSE OF ACTION

**False Arrest and Unlawful Imprisonment Pursuant to 42 U.S.C. § 1983
*Against All Individual Defendants***

236. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

237. At all times relevant herein, the Individual Defendants were acting under color of state law.

238. At all times relevant herein, the Individual Defendants' actions deprived Plaintiff of rights, privileges, and immunities secured by the laws of the United States and the United States Constitution.

239. At all times relevant herein, the Individual Defendants' intentionally, and without probable cause to do so, seized and/or confined Plaintiff and his property.

240. At all times relevant herein, Plaintiff was aware of the Individual Defendants' seizure and/or confinement of Plaintiff's person and property and did not consent to it.

241. At all times relevant herein, the Individual Defendants failed to intervene to stop the false arrest of Plaintiff and failed to release him from custody despite knowing his arrest was not based on probable cause.

242. Defendants' conduct deprived Plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.

243. At all times relevant herein, the Individual Defendants deprived Plaintiff of his rights under the Fourth and Fourteenth Amendments to the United States Constitution.

244. Plaintiff was damaged as a direct and proximate result of Defendants' violation of his rights, and in an amount that exceeds the jurisdictional limits of all lower courts.

FOURTH CAUSE OF ACTION
False Arrest and Unlawful Imprisonment Pursuant State Law
Against all Defendants

245. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

246. Defendants acting individually, and in concert with one another, intended to confine and/or seize Plaintiff.

247. Defendants acting individually, and in concert with one another, confined and/or seized Plaintiff.

248. Plaintiff was conscious of the confinement and/or seizure.

249. Plaintiff did not consent to Defendants' confinement and/or seizure.

250. Defendants' confinement of Plaintiff was not privileged.

251. Defendants lacked probable cause to confine and/or seize Plaintiff.

252. Defendants lacked the reasonable suspicion to confine and/or seize Plaintiff.

253. At all relevant times mentioned herein, Defendants acted extrajudicially, and without a warrant.

254. Defendants' seizure and/or confinement of Plaintiff subjected Plaintiff to a deprivation of liberty without probable cause.

255. The agents, servants, and employees of the CITY, including the Individual Defendants, knew or should have known that Plaintiff's confinement and/or seizure was unlawful and lacked probable cause, but failed to intervene to release him from the unlawful confinement despite their duties to do so.

256. Defendant CITY is responsible for the tortious acts and omissions of its agents, servants, and employees, including, but not limited to the Individual Defendants and those officers who failed to intervene to release Plaintiff, pursuant to the doctrine of *respondeat superior*.

257. As a direct and proximate result of Defendants' acts and omissions Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts.

FIFTH CAUSE OF ACTION
Unreasonable Search and Seizure and Excessive Force
Pursuant to Local Law 48 of 2021
Against All Defendants

258. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

259. Effective on May 24, 2021, Local Law 48 of 2021, amended the New York City Administrative Code (N.Y.C. Admin. Code §§ 8-801, *et seq.*) to create rights of security against unreasonable search and seizure.

260. Effective on May 24, 2021, Local Law 48 of 2021, amended the N.Y.C. Admin. Code (§§ 8-801, *et seq.*) to create rights of security against excessive force.

261. At all relevant times mentioned herein, Plaintiff was a person aggrieved as defined in N.Y.C. Admin. Code. § 8-801.

262. At all relevant times mentioned herein, Plaintiff was subjected to and/or subjected to the deprivation of his rights granted and/or protected by N.Y.C. Admin. Code. § 8-802.

263. At all relevant times mentioned herein, the Individual Defendants were covered individuals as defined in as defined in N.Y.C. Admin. Code. § 8-801.

264. At all relevant times mentioned herein, Defendant CITY was the employer of the Individual Defendants and law enforcement officers who violated Plaintiff's rights as alleged herein.

265. At all relevant times mentioned herein, N.Y.C. Admin. Code. § 8-802 granted Plaintiff the right of security against unreasonable search and seizure.

266. At all relevant times mentioned herein, N.Y.C. Admin. Code. § 8-802 granted Plaintiff the right of security against excessive force.

267. At all relevant times mentioned herein, N.Y.C. Admin. Code. § 8-802 granted Plaintiff the right of security against excessive force regardless of whether such force was used in connection with a search or seizure.

268. At all relevant times mentioned herein, the Individual Defendants and/or covered individuals employed by the CITY, violated Plaintiff's right of security against unreasonable search and seizure guaranteed by N.Y.C. Admin. Code. § 8-802.

269. At all relevant times mentioned herein, the Individual Defendants and/or covered individuals employed by the CITY, violated Plaintiff's right of security against excessive force guaranteed by N.Y.C. Admin. Code. § 8-802.

270. At all relevant times mentioned herein, the Individual Defendants and/or covered individuals employed by the CITY failed to intervene in the violation of Plaintiff's rights secured by N.Y.C. Admin. Code. § 8-802.

271. At all relevant times mentioned herein, Defendant CITY is liable for the acts and omissions of its police officers, who are covered individuals including the Individual Defendants pursuant to N.Y.C. Admin. Code. § 8-803(b).

272. Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts, as a direct and proximate result of the violations of Plaintiff's rights guaranteed by N.Y.C. Admin. Code. § 8-802.

273. Plaintiff has suffered, and continues to suffer, severe physical injuries, emotional distress, economic losses, and was unlawfully confined in violation of his rights guaranteed by N.Y.C. Admin. Code. § 8-802.

274. N.Y.C. Admin. Code. § 8-802 prohibits Defendants from raising as a defense to this cause of action, the defenses of qualified immunity or "any other substantially similar immunity."

275. The CITY has, by legislative pronouncement, and pursuant to the Mayor's refusal to veto N.Y.C. Admin. Code. § 8-801, et seq., knowingly waived its sovereign immunity with respect to the portions of the law which permit punitive damages and prohibit the use of immunity defenses as stated therein.

276. Pursuant to N.Y.C. Admin. Code. § 8-805, Plaintiff is entitled to compensatory damages, punitive damages, attorneys' fees and costs, injunctive relief, and other equitable relief as the Court deems appropriate.

SIXTH CAUSE OF ACTION
Negligence, Negligent Infliction of Emotional Distress, and
Negligent Hiring, Retention, Training, and Supervision
Against All Defendants

277. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

278. Defendant CITY owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee Defendants.

279. Defendant CITY breached those duties of care.

280. Defendant CITY placed Defendants in a position where they could inflict foreseeable harm.

281. Defendant City knew or reasonably should have known of the propensities of its employees, including the Individual Defendants, to commit civil rights violations and other unethical, corrupt, and violent acts.

282. Upon information and belief, said personnel files, records and disciplinary histories will demonstrate that the CITY was fully aware of the Individual Defendants' past constitutional violations, unsuitability for police work, misconduct, violence, criminality, and/or corrupt behavior,

and as such, of the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for public employment in general.

283. Upon information and belief, the CITY failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the CITY's tacit approval of such misconduct or the CITY's deliberate indifference towards the civil rights of those who may interact with its employees, including the Individual Defendants and their fellow officers.

284. Upon information and belief, Defendant CITY failed, or outright refused, to correct the prior unconstitutional, violent, corrupt, or dishonest behavior of the officers at issue, including the Individual Defendants, and thus, failed to prevent the exercise of such behavior against Plaintiff.

285. Defendant CITY failed to take reasonable measures in hiring, training, retaining and supervising its employees, including the Individual Defendants that would have prevented the aforesaid injuries to Plaintiff.

286. Defendants negligently breached their duties of care to Plaintiff and in doing so, inflicted emotional harm upon Plaintiff.

287. Plaintiff was physically injured and suffered understandable mental trauma as a result of being brutalized and violated by the Individual Defendants and the CITY.

288. Defendant CITY is responsible for the tortious acts and omissions of its agents, servants, and employees, including, but not limited to the Individual Defendants and those officers who failed to intervene or who otherwise caused Plaintiff harm pursuant to the doctrine of *respondeat superior*.

289. At all times relevant herein, the Individual Defendants failed to intervene in the obviously negligent, careless, reckless, and illegal actions of their fellow officers including those of the other Individual Defendants.

290. As a direct and proximate result of Defendants' acts and omissions Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts.

SEVENTH CAUSE OF ACTION
Malicious Prosecution Pursuant to 42 U.S.C. § 1983
Against the Individual Defendants

291. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

292. At all times relevant herein, the Individual Defendants were acting under color of state law.

293. At all times relevant herein, the Individual Defendants' actions deprived Plaintiff of rights, privileges, and immunities secured by the laws of the United States and the United States Constitution.

294. The Individual Defendants initiated a criminal prosecution against Plaintiff which caused Plaintiff to be prosecuted.

295. The Individual Defendants initiated a criminal prosecution against Plaintiff without probable cause.

296. The Individual Defendants did not believe and/or did not reasonably believe that Plaintiff had committed the crimes and/or violations charged.

297. The facts alleged by the Individual Defendants were insufficient as a matter of law to sustain the crimes charged.

298. The Individual Defendants acted with malice, which may be inferred from the lack of probable cause.

299. The Individual Defendants' lack of probable cause for each or any charge they levied against Plaintiff is proof of malice.

300. The Individual Defendants initiated the prosecution of Plaintiff maliciously, and for purposes other than a reasonable belief that Plaintiff had committed the crimes charged.

301. The Individual Defendants' false and/or incomplete statements and/or testimony to the district attorney is proof of their malice.

302. At all times relevant herein, the Individual Defendants failed to intervene in the obviously illegal actions of their fellow officers including those of the other Individual Defendants.

303. The criminal proceedings were terminated in Plaintiff's favor.

304. The Individual Defendants' conduct deprived Plaintiff of his rights pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.

305. Plaintiff was injured as a direct and proximate result of The Individual Defendants' violation of his rights, in an amount that exceeds the jurisdictional limits of all lower courts.

EIGHTH CAUSE OF ACTION
Malicious Prosecution Pursuant State Law
Against all Defendants

306. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

307. Defendants initiated a criminal prosecution against Plaintiff which caused Plaintiff to be prosecuted.

308. At the time Defendants initiated the criminal prosecution against Plaintiff, they lacked probable to believe that Plaintiff was guilty of any of each crime they accused Plaintiff of committing.

309. The facts alleged by Defendants were insufficient as a matter of law to sustain the crimes charged.

310. Defendants did not believe and/or did not reasonably believe that Plaintiff had committed any of the crimes charged.

311. Defendants initiated the prosecution of Plaintiff maliciously, and for purposes other than a reasonable belief that Plaintiff had committed the crimes charged.

312. Defendants' lack of probable cause for each or any charge they levied against Plaintiff is proof of malice.

313. Defendants false and/or incomplete statements and/or testimony to the district attorney is proof of their malice.

314. The criminal proceedings were terminated in Plaintiff's favor.

315. Defendant CITY is responsible for the tortious acts and omissions of its agents, servants, and employees, including, but not limited to the Individual Defendants and those officers who failed to intervene, pursuant to the doctrine of *respondeat superior*.

316. At all times relevant herein, the Individual Defendants failed to intervene in the obviously illegal actions of their fellow officers including those of the other Individual Defendants.

317. As a direct and proximate result of Defendants' acts and omissions Plaintiff has been damaged in excess of the jurisdictional limits of all lower courts.

TENTH CAUSE OF ACTION
Pursuant to 42 U.S.C. § 1984, *Monell* claim
against Defendant THE CITY OF NEW YORK

318. Plaintiff repeats and realleges the allegations contained in the foregoing paragraphs as if set forth fully herein.

319. Defendant CITY maintained a policy or custom that caused Plaintiff to be deprived

of his civil rights, and tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative conduct.

320. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

321. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with Defendant City's employees.

322. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City's employees.

323. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

324. Defendant City's conduct caused Plaintiff to be deprived of his civil rights, as guaranteed by the Constitution of the United States, via the First, Fourth, Fifth, Sixth & Fourteenth Amendments thereto.

325. Plaintiff was damaged as a direct and proximate result of Defendants' violation of his rights, and in an amount that exceeds the jurisdictional limits of all lower courts.

326. The CITY OF NEW YORK is liable to Plaintiff given its recalcitrant patterns and practices as well as persistent failure to train its agents, servants, and employees with respect to:

1) *Debour* and/or analyzing the conduct required to stop, question, frisk, pursue, and detain and/or arrest citizens in street encounters; 2) the use of BWC; 3) providing and/or obtaining emergency medical treatment for arrestees; and 4) the duty to intervene to prevent other law enforcement officers from violating the civil rights of arrestees and/or citizens.

327. Filed on January 31, 2008, *Floyd v. City of New York*, remains open for Court appointed monitorship of THE CITY OF NEW YORK's compliance with the settlement agreement obtained subsequent to the Court's finding that THE CITY OF NEW YORK engaged in unconstitutional and discriminatory patterns and practices in its use of Terry Stops also known as "stop and frisk" or "stop, question, and frisk" [hereinafter as "SQF"].

328. The pleadings, transcripts, and decision in *Floyd* as well as the monitor reports are incorporated hereto by reference.

329. The 2020 NYPD Enforcement Report admitted that the majority of NYPD uniformed officers were white.

330. The actions of the Individual Defendants were part of THE CITY OF NEW YORK's custom and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of THE CITY OF NEW YORK under the NYPD's "Stop, Question and Frisk" policy or program [hereinafter as "SQF" or "Stop and Frisk"].

331. Under Stop and Frisk, THE CITY OF NEW YORK permitted, condoned and/or acted with deliberate indifference to the rights of its citizens and visitors, especially those who are Black males.

332. The remedial order in *Floyd v. City of New York*, mandated the involvement of a court-appointed monitor to establish policies and procedures for NYPD's body-worn camera

program.

333. There is no question that the implementation of BWCs across the NYPD has been useful in identifying officers who are responsible for unlawful acts and constitutional violations.

334. However, NYPD is also aware that officers are intentionally removing and/or obscuring their BWC footage before, during and after problematic encounters.

335. As reported by the Civilian Complaint Review Board (CCRB) in February of 2020, and observed by the undersigned in may force cases, including the instant case, Officers have also been seen and heard intentionally obscuring their BWCs or signaling to each other to remove or turn off their cameras to avoid documenting misdeeds, crimes, and constitutional violations.

336. In February of 2020, the CCRB recommended that NYPD amend its BWC policies to make intentionally hindering a BWC recording a prohibited act.

337. To date, NYPD has refused to amend its policies to prohibit intentionally hindering a BWC recording.

338. The refusal to promulgate a policy which makes clear that intentionally obscuring one's camera is misconduct, has clearly empowered unscrupulous officers like the Individual Defendants to obscure their BWC while committing unlawful acts and while conspiring to coverup said unlawful acts.

339. There is no justifiable reason for THE CITY OF NEW YORK to continue a policy which allows this blatant unconstitutional misconduct to continue unabated, especially as the act of obscuring a BWC to prevent one's actions from being recorded, demonstrates a fundamental lack of integrity shared only by the worst officers.

340. Similarly, NYPD has failed to properly train its officers to prevent unlawful street-encounters,

341. The Patrol Guide 212-11 covers investigative encounters, but at 16 pages long, most officers have not read or understood the law which governs street encounters, or the policy enacted by NYPD which purports to obtain their compliance with the law.

342. Training on SQF and other critical legal and procedural concepts that officers frequently misunderstand and/or ignore has never ventured beyond pre-recorded rote, videos that recite the law without giving any relevant context.

343. These videos are usually shown at roll call, not formalized training, and quickly ignored after they are viewed.

344. For all of the millions of dollars that THE CITY OF NEW YORK spends on tactical and weapons trainings, and policies related thereto, it spends very little time and money ensuring that its employees are properly trained in realistic scenarios geared toward conducting the basic street-level encounters that make up the majority of citizen interaction and majority of constitutional violations by the NYPD, as here.

345. While the individual Defendants bear responsibility for their own acts and omissions, THE CITY OF NEW YORK is also responsible for its egregious and longstanding failures that led to the violation of Plaintiff's constitutional rights and irreparably harmed Plaintiff.

346. THE CITY OF NEW YORK has failed to train its officers on their duty to intervene in unconstitutional conduct by other officers, including the use of excessive force and the denial of medical treatment to those like Plaintiff, who are injured by excessive force.

347. THE CITY OF NEW YORK has failed to train its supervisors and investigators to ensure that officers who commit misconduct are supervised, retrained, demoted and/or terminated.

348. Instead, THE CITY, if it punishes officers at all, merely demands that they forfeit some of their numerous vacation days even where they have engaged in egregious uses of excessive

force and misconduct.

349. The CITY rarely, if ever, punishes or even investigates the failure of officers to intervene in excessive force or other misconduct that they witness, despite having a stated policy that holds that to fail to intervene and/or fail to report misconduct, is itself misconduct.

350. THE CITY OF NEW YORK knows to a moral certainty that the ongoing failure to train its officers will lead to officers making unconstitutional choices that sometimes have horrific and deadly consequences.

351. Plaintiff was damaged as a direct and proximate cause by THE CITY OF NEW YORK's ongoing failure to train its officers, and failure to promulgate policies that encourage the lawful policing of New York City and discourage unlawful, dishonest, and criminal behavior among NYPD officers as articulated throughout the complaint.

352. Plaintiff was damaged as a direct and proximate cause by defendants' assault and battery.

353. Plaintiff's damages exceed the jurisdictional limits of all lower courts.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that the following be entered jointly and severally against Defendants and for a jury trial on all causes of action:

- a. A declaratory judgment that the actions, conduct and practices of Defendants complained of herein violated Plaintiff's rights, privileges, and immunities secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution and applicable federal law and the State and City of New York; and

- b. Compensatory damages in an amount to be determined at trial for the serious physical injuries, mental and emotional anguish, unlawful search and seizure, and economic damages sustained by Plaintiff as a result of the events alleged herein; and
- c. Punitive damages and any applicable penalties in an amount to be determined at trial; and
- d. Awarding Plaintiff reasonable attorneys' fees pursuant to fees pursuant to 42 U.S.C. § 1988 and New York Statute, together with the costs of this action; and
- e. Prejudgment interest on all amounts due; and
- f. Such other further relief as the Court may deem appropriate.

DATED: New York, New York
August 21, 2024

Respectfully,

LIAKAS LAW, P.C.
Attorneys for the Plaintiff
MARK CARTY
40 Wall Street, 50th Floor
New York, New York 10005
Tel: (212) 937-6655



CASSANDRA ROHME, ESQ.

VERIFICATION

CASSANDRA ROHME, an attorney duly admitted to practice in the Courts of the State of New York, says that she is an associate in the office of Liakas Law, P.C., attorneys for Plaintiff MARK CARTY, and affirms the following statements to be the truth under penalties of perjury, pursuant to CPLR § 2106:

That she has read the foregoing Summons and Complaint and knows the contents thereof; that the same is true to her knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes them to be true based on conversations with the Plaintiff and investigations conducted by the office of the undersigned.

Deponent further states that the reason why this verification is not made by Plaintiff is that Plaintiff is not presently in the County where the undersigned maintains her office.

DATED: New York, New York
August 21, 2024



CASSANDRA ROHME, ESQ.